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Case Number: 23STCV31263 Hearing Date: September 10, 2026 Dept: 510

No. 12 - Dr. Sandra Lee v. Los Angeles Community College District, et al.

Defendants Los Angeles Community College District, Los Angeles Southwest College, and The Board of Trustees of Los Angeles Community College District's Motion for Summary Judgment or Summary Adjudication

Defendants Los Angeles Community College District, Los Angeles Southwest College, and The Board of Trustees of Los Angeles Community College District (collectively "Defendants") move for summary judgment of this action by Plaintiff Dr. Sandra Lee ("Plaintiff"). In the alternative, Defendants move for summary adjudication of 8 issues: each of Plaintiff's eight causes of action (with issue no. 2 addressing the second and third causes of action) and Plaintiff's claim for punitive damages.

Request for Judicial Notice

Defendants request judicial notice of Exhibits A-F: Plaintiff's original and first amended complaint, three answers, and a minute order. These documents are subject to judicial notice as court records under Evidence Code section 452(d).

Defendants also request the Court take judicial notice of Exhibit G: an appellate court decision in Odom v. Los Angeles Community College Dist. (2025) 331 Cal.Rptr.3d 642, reh'g denied (Apr. 28, 2025), review denied and ordered not to be officially published (July 23, 2025). The Court declines to take judicial notice of this decision; it is not relevant to the Court's decision on the instant motion.

Defendants' request for judicial notice is granted in part as to Exhibits A-F only.

Evidentiary Objections

Plaintiff makes 79 objections to Defendants' evidence. The bulk of the objections were cut-and-pasted from one statement to the next, without any particular concern whether the objections applied to each statement. Plaintiff even objected to the witness's identification of her own job title, asserting that the witness lacked personal knowledge and speculated. Such indiscriminate objections waste a great deal of the Court's time. Plaintiff's counsel is reminded that only colorable, applicable objections should be asserted. Plaintiff's objection nos. 1-13, 16, 21, 25-28, 36, and 65-66 are overruled. Plaintiff's objection nos. 17-20, 22-24, 29-35, 37-49, 53-56, 61-64, and 67-79 are sustained based on lack of foundation/personal knowledge. Objection nos. 50-52 and 57-60 are sustained based on hearsay. The Court does not rule on objection nos. 14-15 for there is no material objected to.

Defendants make several objections to Plaintiff's evidence. While the rules require that objections be consecutively numbered (Cal. Rules of Court, rule 3.1354(b)), Defendants instead listed their 70 objections by paragraph number of Plaintiff's declaration. Defendants also assert a litany of hearsay objections to statements that clearly were not based on out-of-court statements offered for the truth. Defense counsel is likewise reminded to follow the rules so objections can be readily identified and to only assert objections that are colorable and applicable so as to not waste court time. Objections to paragraph nos. 2, 5, 31, 40, 48, 53, 57, 58, 59, 74, 79, 80, 84, 86, 104, and 113 are overruled. Objections to paragraph nos. 6, 10, 11, 13, 19, 22, 30, 35, 36, 41, 43, 44, 45, 46, 49, 50, 51, 55, 56, 60, 71, 75, 90, 91, 92, 93, 96, 97, 98, 101, 105, 106 and 120 are sustained based on lack of foundation/personal knowledge. Objections to paragraph nos. 7, 21, 34, 37 (last sentence), 47, 52, and 83 are sustained based on hearsay. Objections to paragraph nos. 24, 25, 27, 114, and 115 are sustained based on legal conclusions. Objections to paragraph nos. 70, 71, 125, and 126 are sustained based on relevance. Objections to paragraph nos. 77, 82, 88, 93, 95, 101, 105, 107, and 120 are sustained based on improper opinions.

Procedural Issues

A. Plaintiff's Opposition Brief

The Court notes that Plaintiff's opposition brief is overlength by 5 pages. Under California Rules of Court, rule 3.1113(d), responsive briefs to a motion for summary judgment are limited to 20 pages. Plaintiff did not request leave of court to file an overlength brief. Overlength briefs are considered late papers. (Cal. Rules of Court, rule 3.1113(g).) The Court has discretion to disregard an untimely filing. (See Cal. Rules of Court, rule 3.1300(d)). Instead of striking the entire pleading, the Court exercises its discretion to disregard pages 21-25 when deciding this motion.

In their reply brief, Defendants argue that Plaintiff's opposition was untimely filed and served. The Court disagrees. Under Code of Civil Procedure section 437c(b)(2), the opposition brief and supporting papers must be served and filed at least 20 days before the hearing. Before the hearing on this motion was continued, the opposition brief and supporting papers were due on August 8, 2026. Plaintiff filed and served her brief on that date. The opposition was timely.

B. Plaintiff's Separate Statement

The Court finds that Plaintiff's response to Defendants' separate statement was filed in bad faith and contains numerous sham "disputes" asserted without reasonable grounds. "The duty to comply with the law regarding separate statements applies to both sides of a motion for summary judgment or adjudication. The opposing party's responses to the separate statement must be in good faith, responsive, and material. Responses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit." (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 875.) "Courts should ... not hesitate to disregard attempts to game the system by the opposing party claiming facts are 'disputed' when the uncontroverted evidence clearly shows otherwise." (Ibid.)

Plaintiff repeatedly purports to dispute facts that are not the actual facts asserted. She does so with UMF No. 11, which states, "Administrative Regulation C-14, details over forty-four pages how complaints are to be filed, investigated, reported and appealed." Plaintiff's response partially disputes this fact, stating: "Plaintiff agrees there are policies for how complaints are to be investigated,. [sic] However, plaintiff disputes that LACCD followed them." Plaintiff then provides 17 paragraphs that address why she believes the policies were not followed. Defendants' material fact did not state "Defendants followed all policies." It asserted that the policy existed within a certain forty-four-page document. Plaintiff's response is evasive and unhelpful.

Similarly, UMF No. 29 states "After LACCD received Plaintiff Lee's complaint, the district retained Van Dermiden Maddux Investigations Law Firm to conduct an investigation of Plaintiff Lee's allegations." In response, Plaintiff states, "Plaintiff does not dispute for purposes of this motion that LACCD retained the law firm of Van Dermiden Maddux Investigations to investigate Dr Lee's complaints. However, LACCD delayed for over 8 months before they retained an outside firm." Plaintiff then provides several paragraphs of arguments. This is not a true dispute of Defendants' asserted fact. Plaintiff was required to admit this fact was true.

By failing to provide a good-faith and objectively reasonable response to several of Defendants' material facts, Plaintiff undermined the very purpose of a separate statement and the statutory procedure for addressing motions for summary judgment and summary adjudication. This hampers the Court's ability to focus on the relevant issues. The Court will proceed to the merits, while admonishing Plaintiff's counsel for violating these rules.

Legal Standard for Summary Judgment or Adjudication

Summary judgment should be granted where no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (CCP § 437c(c); *Villa v. McFerren* (1995) 35 Cal.App.4th 733, 741.) Courts use a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Defendants Los Angeles Southwest College and the Board of Trustees

Plaintiff named both Los Angeles Southwest College and the Board of Trustees as standalone defendants. Defendants presented evidence (Friedman Decl., ¶¶ 4-7) that Los Angeles Southwest College is not a distinct legal entity, but is part of Defendant LACCD. Similarly, the Board of Trustees is the body that governs LACCD, and is also not a separate legal entity. (*Id.*) Plaintiff does not dispute either fact. (Pl. Resp. to Stmt. UMF, nos. 4, 5.) As such, neither Los Angeles Southwest College nor the Board of Trustees should have been named as defendants. Summary judgment should thus be entered in their favor against Plaintiff.

2nd and 3rd Causes of Action: Gender and Race Discrimination

In employment discrimination cases, "[a]n employer defendant may meet its initial burden on summary judgment, and require the employee plaintiff to present evidence establishing a triable issue of material fact, by presenting evidence that either negates an element of the employee's prima facie case, or establishes a legitimate nondiscriminatory reason for taking the adverse employment action against the employee." (*Swanson v. Morongo Unified School Dist.* (2014) 232 Cal.App.4th 954, 966.) Once the defendant does so, the plaintiff "need only present evidence establishing a triable issue on the specific element the [defendant] challenges." (*Id.* at p. 968.)

A plaintiff alleging discrimination must allege "that (1) [s]he was a member of a protected class, (2) [s]he was qualified for the position [s]he sought or was performing competently in the position [s]he held, (3) [s]he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive." (*Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 355.)

Defendants' motion for summary judgment rests heavily on the argument that Plaintiff was never subjected to an adverse employment action because she was never terminated, and remains a full-time, tenured professor at Los Angeles Southwest College.

An adverse employment action must "materially affect the terms and conditions of employment." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1036.) "[I]n determining whether an employee has been subjected to treatment that materially affects the terms and conditions of employment, it is appropriate to consider the totality of the circumstances and to apply the 'continuing violation' doctrine." (*Ibid.*) This test "looks to 'the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee's job performance or opportunity for advancement in his or her career,' and the test 'must be interpreted liberally ... with a reasonable appreciation of the realities of the workplace...'" (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1389, overruled on other grounds by *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703.)

Defendants meet their initial burden by showing Plaintiff cannot establish that she suffered an adverse employment action. In the first amended complaint, Plaintiff alleges that she suffered five adverse employment actions. Plaintiff alleges she was (1) denied the full pay she was entitled to receive in her position (*id.*, ¶ 67); and (2) denied an Honors Program Coordinator position (FAC, ¶ 49). Plaintiff also alleges she suffered adverse employment actions at the hands of Defendant Awan when she (3) omitted the psychology department from a grant approval list (*id.*, ¶ 51); (4) moved the psychology department down the faculty hiring prioritization list (*id.*, ¶ 50); and (5) directed Vice President Bradford to cancel her classes (*id.*, ¶ 48).

In their motion, Defendants argue that Plaintiff's complaint about not receiving her full pay is unsubstantiated; Plaintiff herself admitted that the payroll discrepancies were a district-wide issue. (Gallagher Decl., Ex. 1, Lee Depo., at 96:3-11.) Moreover, Defendants contend that her other alleged adverse employment actions were ordinary administrative decisions that do not amount to a course of conduct that materially changed the terms and conditions of her employment.

Even if Plaintiff could establish an actual adverse employment action against her, Defendants argue they can provide legitimate, nondiscriminatory reasons for the conduct. For example, Defendants provide evidence that Plaintiff was not eligible to become the Honors Program Coordinator because her position as Faculty Union President and her teaching courseload already put her beyond her contractual limitations for her workload. (Friedman Decl. ¶ 27.) In addition, Defendants argue the psychology department's removal from the grant list was a simple mistake that was fixed when it was brought to Defendant Awan's attention (Awan Decl., ¶ 17), and that Plaintiff's class cancellations were due to established policies for enrollment thresholds, not any animus directed toward her (see *id.*, ¶ 13; Friedman Decl., ¶ 26). Lastly, Defendants contend that the psychology department moving down on the faculty prioritization list was the Academic Senate's decision, which was based on department needs. (Awan Decl. ¶ 16.) Therefore, Defendants argue that all perceived adverse actions were legitimate administrative decisions.

Plaintiff raises a triable issue of material fact as to whether Defendants' conduct constitutes an adverse employment action. Plaintiff argues that her denial of the Honors Program Coordinator position is independently sufficient to constitute an adverse employment action because it is a denial of a promotional opportunity that would affect Plaintiff's institutional standing. Plaintiff attests in her declaration that the Coordinator position with the Honors Program "would have opened opportunities for me to conduct outreach at UCLA and help LACCD compete with other two-year community colleges as a feeder school to UCLA and other colleges. This would increase my value at LACCD." (Lee Decl., ¶ 35.)

The Court cannot conclude as a matter of law that denial of this new opportunity did not "materially affect the terms and conditions of [her] employment." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1036.) This is due primarily because the evidence supporting Defendants' argument (primarily Friedman Decl., ¶¶ 26, 27) and Plaintiff's response (Lee Decl., ¶ 35) are all inadmissible, as indicated above.

Plaintiff also raises a triable issue of material fact as to whether the actions taken against her were motivated by legitimate, nondiscriminatory reasons. For example, Plaintiff attests that her other position as a Faculty Union President consumed only 60% of her full-time load and that she had capacity to serve as the Honors Program Coordinator, contrary to Defendants' assertions. (Lee Decl., ¶ 37.) Given this evidence, a reasonable trier of fact could conclude that denying Plaintiff the Coordinator role materially affected her opportunity for career advancement or was otherwise a materially adverse consequence.

Defendants also argue that Plaintiff cannot show the element of damages required for a discrimination claim because she did not suffer any financial losses. The Court declines to address this argument; it was not listed as an issue for which Defendants sought summary adjudication in their notice of motion. (See *Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744 ["A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified."].) Because it was not identified as an issue, Plaintiff did not submit evidence in response.

5th and 6th Causes of Action: FEHA and Whistleblower Retaliation

Both retaliation under the Fair Employment and Housing Act and whistleblower retaliation under Labor Code section 1102.5 require Plaintiff to establish an adverse employment action. Courts apply the “definition of adverse employment action for FEHA retaliation lawsuits ... to retaliation lawsuits under section 1102.5(b).” (Patten v. Grant Joint Union High School Dist. (2005) 134 Cal.App.4th 1378, 1387.)

Defendants move for summary adjudication of these claims on the grounds that Plaintiff did not suffer an adverse employment action. However, as discussed above, Plaintiff raises a triable issue of material fact as to this element. Therefore, Defendants are not entitled to summary adjudication of these retaliation claims.

In their memorandum of points and authorities, Defendants briefly argue against Plaintiff's failure to show causation and damages. However, these arguments were not identified as issues to be adjudicated in their notice of motion as required. (See Notice, at p. 2 [“Issue 3: There is no triable issue of material fact on Plaintiff Lee's fifth cause of action for retaliation because Plaintiff Lee has not suffered any adverse employment action.”] [Issue 4: There is no triable issue of material fact on Plaintiff Lee's sixth cause of action for retaliation under Labor Code section 1102.5 because Plaintiff Lee has not suffered any adverse employment action.”] [emphases added].) As such, the Court will not address them here.

1st Cause of Action: Violation of Education Code §§ 87160 – 87164 et seq.

Education Code sections 87160 through 87164 et seq., or the “Reporting by Community College Employees of Improper Governmental Activities Act,” provide workplace protection to employees of community college districts against retaliation. The Act provides, “An employee may not directly or indirectly use or attempt to use the official authority or influence of the employee for the purpose of intimidating, threatening, coercing, commanding, or attempting to intimidate, threaten, coerce, or command any person for the purpose of interfering with the right of that person to disclose to an official agent matters within the scope of this article.” (Ed. Code, § 87163(a).) A protected disclosure includes an improper governmental activity or a condition that may significantly threaten the public or employees' health or safety. (See Ed. Code, § 87162(e).) Liability arises only if “the injured party has first filed a complaint with the local law enforcement agency.” (Ed. Code, § 87164(h).)

Defendants argue that Plaintiff's C-14 complaint does not constitute “improper governmental activity” as contemplated under the statute because it addresses routine personnel disputes, not gross misconduct or a condition that would threaten health or safety.

Plaintiff raises a triable issue of material fact. Plaintiff points out that the Education Code defines “improper governmental activity” as expressly including an “activity [that] violates a state or federal law.” (Ed. Code, § 87162(c)(1).) Therefore, the content of the disclosure does not need to report on gross misconduct; a violation of law suffices. Here, because Plaintiff's complaint alleged unlawful retaliation and discrimination, it qualifies as an “improper governmental activity” under the statute.

Defendants also argue that Plaintiff cannot prove retaliatory conduct because “[n]one of the actions Plaintiff Lee characterizes as ‘retaliation’ amount to an adverse employment action warranting actionability.” (Motion, at p. 16.) Here, Education Code section 87163(b) protects employees against a broad range of retaliatory conduct: “promising to confer or conferring any benefit; affecting or threatening to affect any reprisal; or taking, directing others to take, recommending, processing, or approving any personnel action, including, but not limited to appointment, promotion, transfer, assignment, performance evaluation, suspension, or other disciplinary action.” A reasonable trier of fact could conclude that denying Plaintiff the Coordinator role was a “personnel action” as contemplated under the statute.

4th Cause of Action: Failure to Prevent Discrimination, Harassment, or Retaliation

Government Code section 12940(k) provides that it is unlawful “[f]or an employer ... to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” This subdivision “creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages.” (Dickson v. Burke Williams, Inc. (2015) 234 Cal.App.4th 1307, 1313 (Dickson).)

Defendants argue this claim cannot stand on its own without an underlying claim for violating FEHA. (See Dickson, supra, 234 Cal.App.4th at 1318.) Triable issues of material fact preclude summary adjudication of Plaintiff's FEHA claims for discrimination and retaliation. The same therefore applies to this claim.

Defendants also argue that they satisfied their legal obligations by taking prompt and appropriate remedial action by fully investigating Plaintiff's March 2020 complaint. Defendants contend that they retained outside counsel to conduct the investigation, which required 23 interviews of 12 witnesses and extensive document review. (Friedman Decl., ¶¶ 13-14.) In addition, Defendant Rodriguez reviewed the investigation and prepared a written decision in compliance with LACCD's complaint policies. (Friedman Decl., ¶ 20; Rodriguez Decl., ¶ 12.)

Plaintiff raises a triable issue of material fact as to whether Defendants indeed took all reasonable steps to prevent retaliation and discrimination. Plaintiff identifies a significant delay in the issuance of outside counsel's investigation and Rodriguez's subsequent administrative review of the investigation. Specifically, the outside investigators issued their findings more than 17 months after Plaintiff filed her C-14 complaint. (See Lee Decl., Ex. 8.) This is much greater than the estimated 60-calendar-day timeline according to LACCD's C-14 complaint policy. (Friedman Decl., Ex. 3, at p. 28 ["Investigations should be completed in 60 calendar Days unless good cause exists for extending the time, in which case all parties must be kept informed."].) After the firm issued their findings, Defendant Rodriguez then took more than 10 months to issue his administrative review on the same day Defendant Awan departed Los Angeles Southwest College for another job. (See Lee Decl., Ex. 5.) A reasonable trier of fact could conclude from this record that Defendants did not take all reasonable steps to prevent retaliation and discrimination.

7th Cause of Action: Intentional Infliction of Emotional Distress

The elements of intentional infliction of emotion distress are "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.)

Defendants establish Plaintiff cannot prove the first element: extreme and outrageous conduct. "An essential element of such a claim is a pleading of outrageous conduct beyond the bounds of human decency. [Citations.] Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society." (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80.) Examples of sufficiently egregious behavior include "repeated threats of physical harm directed to plaintiffs, stated in graphic terms" (Delfino v. Agilent Technologies, Inc. (2006) 145 Cal.App.4th 790, 809) or threats of violence against plaintiffs and their families. (See Kiseskey v. Carpenters' Trust for So. California (1983) 144 Cal.App.3d 222, 229.)

As described above, Plaintiff presents evidence of personnel management decisions that negatively impacted her. While that conduct may have been discriminatory, that does not make it actionable via the tort of intentional infliction of emotional distress. Plaintiff provides insufficient evidence to raise a triable issue of material fact as to whether Defendants' conduct was "extreme and outrageous." Defendants are entitled to summary adjudication of this cause of action.

8th Cause of Action: Negligent Hiring, Supervision, and Retention

Defendants are entitled to summary adjudication of this cause of action.

"Negligent hiring/retention is a theory of direct liability—not vicarious liability. In a negligent hiring/retention cause of action, the neglect alleged is not that of the employee. The neglect pleaded is that of the employer itself." (J.W. v. Watchtower Bible and Tract Society of New York, Inc. (2018) 29 Cal.App.5th 1142, 1163 [emphasis added].) However, public entities such as Defendants are not liable for torts absent some statutory basis. "[A]ll government tort liability must be based on statute." (County of San Bernardino v. Superior Court (2022) 77 Cal.App.5th 1100, 1107.) " '[S]overeign immunity is the rule in California; governmental liability is limited to exceptions specifically set forth by statute.' " (Id. at p. 1108.)

While Plaintiff is correct that Government Code section 815.2 makes public entities vicariously "liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment" (id., subd. (a)), the tort of negligent hiring, supervision, and retention is explicitly a direct liability tort.

Plaintiff's cited authority, *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, does not establish a legal basis for imposing vicarious liability on a public entity for negligent hiring, supervision, and retention given the facts of this case. The Court previously noted that C.A. does not support Plaintiff's position. On April 30, 2025, the Court granted Defendants' motion for judgment on the pleadings on the eighth cause of action after finding, among other issues, that C.A. is inapplicable to this case. Plaintiff nevertheless continues to rely on authority that is easily distinguishable.

In *C.A.*, the California Supreme Court held that public school districts can be liable for negligent hiring, retention, and supervision under Government Code section 815.2 when they negligently hire employees who injure students. The Court explained: "The scope and effect of our holding on individual liability is limited by requirements of causation and duty, elements of liability that must be established in every tort action." (Id. at p. 876.) For duty, "the potential legal responsibility of District administrators and supervisors for negligently hiring or retaining" an employee who allegedly sexually abused a student "arises from the special relationship they had with plaintiff, a student under their supervision, which relationship entailed the duty to take reasonable measures to protect plaintiff from injuries at the hands of others in the school environment. Absent such a special relationship, there can be no individual liability to third parties for negligent hiring, retention or supervision of a fellow employee, and hence no vicarious liability under section 815.2... ." (Id. at p. 877.)

Because Plaintiff fails to identify any special relationship that would impose a similar duty on Defendants here, Plaintiff cannot show the elements required to prove her claim.

Claim for Punitive Damages

Defendants are entitled to summary adjudication of Plaintiff's claim for punitive damages. To recover punitive damages, a plaintiff must prove "by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (a).)

Punitive damages are not available against public entities. "Notwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant." (Gov. Code, § 818.) Defendants are all public entities that cannot be liable for punitive damages.

Plaintiff fails to raise a triable issue of material fact. In her memorandum of points and authorities, Plaintiff cites *Monge v. Superior Court* (1986) 176 Cal.App.3d 503 to support her claim for punitive damages. However, this case does not discuss recoverability of punitive damages against a public entity.

Disposition

Defendants Los Angeles Southwest College and The Board of Trustees of Los Angeles Community College District's motion for summary judgment is granted. Defendant Los Angeles Community College District's motion for summary judgment is denied. The Court grants summary adjudication on Plaintiff's seventh and eighth causes of action and of Plaintiff's claim for punitive damages in favor of Defendant LACCD. The Court denies summary adjudication of all other causes of action.

Defendants Dr. Seher Awan and Dr. Francisco Rodriguez's Motions for Summary Judgment or Summary Adjudication

Defendants Dr. Seher Awan ("Awan") and Dr. Francisco Rodriguez ("Rodriguez") separately move for summary judgment of this action by Plaintiff Dr. Sandra Lee ("Plaintiff"). In the alternative, Awan and Rodriguez move for summary adjudication of 5 issues: three issues regarding Plaintiff's claims for violation of Education Code sections 87160-87164 et seq. and two issues regarding her claim for intentional infliction of emotional distress. Because both motions contain significant overlap, the Court will address them together.

Request for Judicial Notice

Awan and Rodriguez request the Court take judicial notice of identical Exhibits A-E: Plaintiff's original and first amended complaint, two answers, and a minute order. These documents are subject to judicial notice as court records under Evidence Code section 452(d).

Awan and Rodriguez also request the Court take judicial notice of Exhibit F: an appellate court decision in *Odom v. Los Angeles Community College Dist.* (2025) 331 Cal.Rptr.3d 642, reh'g denied (Apr. 28, 2025), review denied and ordered not to be officially published (July 23, 2025). The Court declines to take judicial notice of this decision; it is not relevant to the Court's decision on the instant motion.

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Evidentiary Objections

Plaintiff makes 83 objections to Awan's evidence filed in support of his motion. The bulk of the objections were cut-and-pasted from one statement to the next, without any particular concern whether the objections applied to each statement. Plaintiff even objected to the witness's identification of her own job title, asserting that the witness lacked personal knowledge and speculated. Such indiscriminate objections waste a great deal of the Court's time. Plaintiff's counsel is reminded that only colorable, applicable objections should be asserted. Plaintiff's objection nos. 1-6, 10, 13-17, 20-22, 31, 37, 40-41, 43, and 83 are overruled. Objection nos. 7-9, 11-12, 18-19, 23-30, 31-36, 39, 42, 44-51, 54-55, 59, and 65-82 are sustained based on lack of foundation/personal knowledge. Objection nos. 38, 52-53, 56-58, and 60-64 are sustained based on hearsay.

Plaintiff makes 72 objections to Rodriguez's evidence filed in support of his motion. Objection nos. 1-6, 10, 13-16, 20-22, 31, 39, 43, 45, and 68 are overruled. Objection nos. 7-9, 11-2, 17-19, 23-30, 32-38, 41-42, 44, 46-57, 61-62, 67, and 69-72 are sustained based on lack of foundation/personal knowledge. Objection nos. 40, 58-60 and 63-66 are sustained based on hearsay.

Awan and Rodriguez make identical objections to Plaintiff's evidence. While the rules require that objections be consecutively numbered (Cal. Rules of Court, rule 3.1354(b)), Awan and Rodriguez instead listed their 70 objections by paragraph number of Plaintiff's declaration. Awan and Rodriguez also assert a litany of hearsay objections to statements that clearly were not based on out-of-court statements offered for the truth. Defense counsel is likewise reminded to follow the rules so objections can be readily identified and to only assert objections that are colorable and applicable so as to not waste court time. Objections to paragraph nos. 2, 5, 31, 40, 48, 53, 57, 58, 59, 74, 79, 80, 84, 86, 104, and 113 are overruled. Objections to paragraph nos. 6, 10, 11, 13, 19, 22, 30, 35, 36, 41, 43, 44, 45, 46, 49, 50, 51, 55, 56, 60, 71, 75, 90, 91, 92, 93, 96, 97, 98, 101, 105, 106 and 120 are sustained based on lack of foundation/personal knowledge. Objections to paragraph nos. 7, 21, 34, 37 (last sentence), 47, 52, and 83 are sustained based on hearsay. Objections to paragraph nos. 24, 25, 27, 114, and 115 are sustained based on legal conclusions. Objections to paragraph nos. 70, 71, 125, and 126 are sustained based on relevance. Objections to paragraph nos. 77, 82, 88, 93, 95, 101, 105, 107, and 120 are sustained based on improper opinions.

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1st Cause of Action: Violation of Education Code §§ 87160 – 87164 et seq.

In their motions, Awan and Rodriguez both claim that Plaintiff’s claim for violation of Education Code §§ 87160 – 87164 et seq. is not alleged against them in the operative first amended complaint. However, they both argue for summary adjudication of this claim in their favor because Plaintiff failed to name them as Defendants under this cause of action. This argument is nonsensical and unnecessary. Awan and Rodriguez should not have filed motions for summary adjudication to claims that are not asserted against them.

Awan and Rodriguez’s motions for summary adjudication as to this cause of action are denied as moot. Plaintiff’s claim for intentional infliction of emotional distress is the only operative claim alleged against Awan and Rodriguez.

7th Cause of Action: Intentional Infliction of Emotional Distress

The elements of a cause of action for intentional infliction of emotional distress are “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.)

Awan and Rodriguez establish Plaintiff cannot prove the first element: extreme and outrageous conduct. “An essential element of such a claim is a pleading of outrageous conduct beyond the bounds of human decency. [Citations.] Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society. A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination.” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.) Examples of sufficiently egregious behavior include “repeated threats of physical harm directed to plaintiffs, stated in graphic terms” (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 809) or threats of violence against plaintiffs and their families. (See *Kiseskey v. Carpenters’ Trust for So. California* (1983) 144 Cal.App.3d 222, 229.)

As framed in the first amended complaint, Plaintiff alleges that Awan engaged in extreme and outrageous conduct when she made racially insensitive comments at workshops and retreats, stereotyped African American women, and used profanity in meetings, among other things. (See FAC, ¶ 292.) In addition, Plaintiff alleges Rodriguez engaged in extreme and outrageous conduct when he “covered up” an investigatory report that substantiated Awan’s racial and gender discrimination by failing to take any action until Awan was hired elsewhere. (See *id.*, ¶ 296.)

Awan presents evidence that the conduct Plaintiff identifies does not rise to the level of “extreme and outrageous” required for an intentional infliction of emotional distress claim. For example, Awan provides evidence that Plaintiff did not feel targeted by particular comments Awan made to a leadership team about hiring consultants to help “deal with the colleges [sic] ‘Black and brown’ racial problems.” (See FAC, ¶ 292.) In her deposition, Plaintiff attests that she did not feel targeted, but was confused because Awan was new in her position and Lee was not aware of such racial problems. (Musicant Decl., Ex. 6, Lee Depo., at 61:12-24.) Awan argues that her other alleged statements about the institution’s demographic make-up changing, among others, do not exceed all bounds of human decency.

In opposition, Plaintiff does not explain how Awan's certain comments or other behavior identified in the first amended complaint meet the "extreme and outrageous" standard. Instead, Plaintiff points to the internal C-14 investigation report that allegedly substantiated race and gender discrimination. She also argues that she suffered adverse employment actions.

Even viewing the evidence in the light most favorable to Plaintiff, nothing in the record shows Awan engaged in outrageous conduct beyond the bounds of human decency. The record shows, at most, Awan acted inappropriately when making some comments. Awan's actions were far less severe than the conduct Hughes held was not extreme or outrageous as a matter of law. There, the "defendant told plaintiff 'I'll get you on your knees eventually. I'm going to fuck you one way or another.' " (Hughes, supra, at p. 1040.) The California Supreme Court held, "[D]efendant's inappropriate comments fall far short of conduct that is so 'outrageous' that it ' " 'exceed[s] all bounds of that usually tolerated in a civilized community.' " ' " (Id. at p. 1051.) Here, the record includes evidence Awan made some inappropriate comments, none of which come close to the "vulgar and highly offensive" statements in Hughes (id. at p. 1049) that were themselves insufficiently extreme or outrageous for intentional infliction of emotional distress. Plaintiff does not show any triable issue of material fact on this cause of action as to Awan.

Plaintiff also does not raise a triable issue of material fact as to whether Rodriguez's conduct was extreme and outrageous. Plaintiff provides no admissible evidence showing that Rodriguez's issuance of his administrative review of the investigative report operated as a cover-up scheme. Parties opposing motions for summary judgment cannot rely upon "assertions that are 'conclusionary, argumentative or based on conjecture and speculation,'" but instead must "'make an independent showing by a proper declaration or by reference to a deposition or another discovery product that there is sufficient proof of the matters alleged to raise a triable question of fact'" (Roberts v. Assurance Co. of America (2008) 163 Cal.App.4th 1398, 1404.)

Other isolated comments made outside of Plaintiff's presence that she was a "troublemaker" or did not get along with other leadership do not constitute outrageous conduct beyond the bounds of human decency.

Because the Court finds that Plaintiff fails to raise a triable issue of material fact as to whether Awan and Rodriguez's conduct was extreme and outrageous, the Court need not and does not discuss whether the claim is separately barred by the workers' compensation exclusivity provision.

Disposition

Defendants Dr. Seher Awan and Dr. Francisco Rodriguez's motions for summary judgment are granted.